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Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED CIVIL JURISDICTION

FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,

v.

CSAA INSURANCE EXCHANGE
DEFENDANT

Case No.: CGC-25-631802

PLAINTIFF'S BENCH BRIEF ON SEQUENCING OF
SECTION 425.17 GATEWAYS AND PER-PRONG
THRESHOLD ANALYSIS UNDER INLAND OVERSIGHT;
SECTION 425.17(c) DIRECT COMMERCIAL-SPEAKER
APPLICATION; FLATLEY / INSURANCE-CODE
ILLEGALITY CHANNEL; SOUKUP MINIMAL MERIT
VIA ZHANG; ADDITIONAL HIGH-IMPACT GROUNDS

(Cal. Rules of Court, rules 3.1112(b), 3.1113(j), 3.1300(d), 3.1306(c);
Code Civ. Proc., §§425.16, 425.17)

Cross-noticed for pending defense hearings (this case, Dept. 302):

#	Motion	Date / dept / judge
(1)	Anti-SLAPP (Code Civ. Proc., § 425.16), Demurrer (CCP §430.10), & MTS (CCP §436)	May 13, 2026, 9:00 a.m.; Dept. 302; Hon. Joseph M. Quinn
(2)	Demurrer (CCP §430.10)	May 13, 2026, 9:00 a.m.; Dept. 302; Hon. Joseph M. Quinn
(3)	MTS (CCP §436)	May 13, 2026, 9:00 a.m.; Dept. 302; Hon. Joseph M. Quinn

Complaint filed: Dec. 23, 2025
FAC filed: Mar. 4, 2026

1 INTRODUCTION

2 This Bench Brief asks the Court to apply the sequencing rule of Inland Oversight Committee
3 v. County of San Bernardino at the May 13, 2026 hearing on Defendant CSAA Insurance
4 Exchange's Special Motion to Strike under Code of Civil Procedure section 425.16, Demurrer
5 under Code of Civil Procedure section 430.10, and Motion to Strike under Code of Civil
6 Procedure section 436.

7 Four categorical denial grounds are presented in the order the Court must reach them, each
8 independently sufficient for outright denial:

9 Gateway 1 (LEAD): The section 425.17(c) direct commercial-speaker exclusion. CSAA is
10 a licensed California insurer that issued a claim-handling denial letter to its own named
11 insured. The four predicates of subdivision (c) are satisfied on the face of the record as a
12 matter of law. Defense did not brief subdivision (c) in any paper.

13 Gateway 2: The section 425.17(b) public-interest exclusion. Plaintiff's UCL action enforces
14 consumer protection under the Insurance Code and Fair Claims Settlement Practices Regu-
15 lations for the benefit of all California policyholders.

16 Gateway 3: The Flatley illegality channel. CSAA's February 25, 2021 denial letter and
17 claim-handling conduct violated Insurance Code section 790.03(h) and 10 CCR sections
18 2695.1-2695.8 as a matter of law. The violations are established by documentary evidence
19 that is uncontroverted.

20 Gateway 4: The Soukup step-two minimal merit threshold via the Zhang UCL channel.
21 Plaintiff demonstrates a probability of prevailing on each element of the UCL cause of action,
22 with standing under Business and Professions Code section 17204 and injury in fact under
23 Kwikset.

24 Fallback: Park per-claim gravamen gap; Baral parsing; Plant Insulation primary-rights /
25 no-abatement analysis.

26 If any single gateway is satisfied, the motion is denied. If Gateway 1 or Gateway 2 is the
27 basis, section 425.17(e) closes the interlocutory-appeal and automatic-stay channels, and the
28 case proceeds in real time. The Court need not reach step one or step two once a categorical
29 denial ground is established.

30 Inverse-severance statement. Plaintiff does not advance, and does not request that the Court
31 reach, any extrinsic-fraud or independent-equity theory at this hearing. Those theories and

1 their supporting authorities are the predicate of the companion action CGC-25-631801 (May
2 12, 2026, Dept. 301, Hon. Van Aken).
3 (See Table of Authorities, *supra*; Appendix A (Court Citation Validation Report) for per-
4 authority verification.)

5
6 **AUTHORITY FOR THE VEHICLE**

7 Plaintiff respectfully submits this Bench Brief under California Rules of Court, rule 3.1112(b)
8 (“other papers” in support of opposition), rule 3.1113(j) (incorporation by reference), rule
9 3.1306(c) (notice of intent to rely on extra-record authorities), and the court’s inherent au-
10 thority to receive analytical frameworks for pending motions. As a non-memorandum other
11 paper under rule 3.1112(b), this Bench Brief is not subject to the fifteen-page memorandum
12 cap of rule 3.1113(d).

13 This Bench Brief is filed under rule 3.1300(d). No paper shall be refused for filing on the
14 ground that it was not timely filed. Good cause for this May 12, 2026 filing: this Bench
15 Brief supplements but does not duplicate the operative oppositions (filed May 7, 2026); it
16 provides a gateway-sequencing framework that could not be condensed within the fifteen-
17 page memorandum envelope and that materially assists the Court in structuring its ruling
18 at each threshold.

19 This Bench Brief incorporates by reference under rule 3.1113(j) all May 7, 2026 filings:
20 Plaintiff’s Anti-SLAPP Operative Opposition (Anti-SLAPP Opposition (item 01, filed May
21 8, 2026)); Demurrer Operative Opposition (item 01B); MTS-CCP436 Operative Opposition
22 (item 01C); Notice of Withdrawal and Designation (Notice of Withdrawal (item 02, filed
23 May 8, 2026)); Request for Judicial Notice (Request for Judicial Notice (item 03, filed May
24 8, 2026)); Declaration of Plaintiff (Plaintiff Declaration (item 04, filed May 8, 2026)); Evi-
25 dentiary Objections (Evidentiary Objections (item 06, filed May 8, 2026)); Indexed Exhibits
26 Volume (Exhibits Volume (item 07, filed May 8, 2026)); Notice of Lodging (Notice of Lodging
27 (item 08, filed May 8, 2026)); Notice of Compliance with April 30 Order (Notice of Compli-
28 ance (item 09, filed May 8, 2026)); Notice and Statement re CCP section 425.17 (Plaintiff’s
29 Request for Judicial Notice (filed May 8, 2026) of Insurance Code section 790.03(h) and 10
30 CCR sections 2695.1 to 2695.8 (Supplemental RFJN (item 14, filed May 8, 2026)); Motion
31 to Strike the May 6, 2026 O’Connell Reply Declaration (Motion to Strike Reply (item 15,

1 filed May 8, 2026)).

2 Plaintiff does not advance, and does not request that the Court reach, any extrinsic-fraud
3 or independent-equity theory at this hearing. Those theories and their supporting author-
4 ities are the predicate of the companion action CGC-25-631801 (May 12, 2026, Dept. 301,
5 Hon. Van Aken).

6
7 SUMMARY OF ARGUMENT

8 This motion presents four independent categorical denial grounds plus a fallback, each suf-
9 ficient alone. Under the Inland Oversight sequencing rule, the Court must reach the section
10 425.17 categorical exclusion grounds in sequence before any Park/Equilon two-step analysis.
11 Gateway 1 (section 425.17(c) direct commercial-speaker exclusion – LEAD). CSAA Insurance
12 Exchange is a licensed California insurer that, in the ordinary course of delivering insurance
13 services, issued a claim-handling denial letter to Plaintiff as its named insured under CSAA
14 Policy/Claim No. 1004-09-1054. CSAA is a “person primarily engaged in the business of
15 selling or leasing goods or services” within the meaning of section 425.17(c)(1). Its February
16 25, 2021 denial letter was “a statement or conduct by that person or entity... arising out of...
17 the person’s or entity’s... services” directed at “an actual or potential buyer or customer”
18 (section 425.17(c)(2)). The claim involved a single insured and a single claim in a direct
19 insurer-to-claimant relationship (section 425.17(c)(3)). CSAA is not a news-gatherer or
20 reporter (section 425.17(c)(4) inapplicable). If the Court so finds, the motion is denied as
21 a matter of law. Section 425.17(e) then closes section 425.16(i) interlocutory appeal and
22 section 916 stay. This gateway operates independently of section 425.17(b).

23 Gateway 2 (section 425.17(b) public-interest exclusion – UCL consumer/regulated insur-
24 ance). Plaintiff’s UCL action is brought in the public interest in enforcing the statutory
25 floor of Insurance Code section 790.03(h) and 10 CCR sections 2695.1-2695.8 for the benefit
26 of all California policyholders. The relief sought – injunctive relief and restitution under
27 Business and Professions Code sections 17200 and 17204 – is not greater than or different
28 from what any consumer could recover. If the Court declines Gateway 2, Gateways 1, 3, and
29 4 remain independently operative.

30 Gateway 3 (Flatley illegality via Insurance Code section 790.03(h) + 10 CCR 2695.1-2695.8
31 + common-law Egan/Wilson/Engalla). CSAA’s claim-handling conduct – premature 21-day

1 claim closure, failure to retrieve silent-witness materials, omission of CDI review notice –
2 violated the Insurance Code and Fair Claims Settlement Practices Regulations as a matter of
3 law. The violations are established by uncontroverted documentary evidence. The conduct
4 is pre-litigative and non-communicative; Civil Code section 47(b) is inapplicable. Under
5 Flatley, conduct that is illegal as a matter of law is unprotected regardless of step-one
6 categorization.

7 Gateway 4 (Soukup step-two minimal merit via Zhang UCL channel). If the Court reaches
8 step two, Plaintiff demonstrates a probability of prevailing on the UCL cause of action
9 through the Zhang UCL channel: Insurance Code section 790.03(h) violations serve as the
10 “unlawful” prong predicate. Moradi-Shalal’s bar on private Insurance Code actions does not
11 foreclose UCL actions predicated on Insurance Code violations. Zhang holds that a UCL
12 cause of action alleging violations of Insurance Code section 790.03(h) may proceed. Standing
13 is established under Business and Professions Code section 17204 and Kwikset injury in fact.
14 The litigation privilege does not bar because the operative conduct is pre-litigative.

15 Fallback. Three independent fallback grounds: (a) Step-one per-claim gravamen gap under
16 Park/Bonni – the February 25, 2021 denial letter precedes any judicial proceeding; (b) Baral
17 parsing confines any grant to specific protected-activity allegations; (c) Plant Insulation
18 primary-rights analysis – this action (CSAA as sole defendant; insurance bad-faith primary
19 right) is distinct from CGC-25-631801 (multiple defendants; extrinsic-fraud/court-integrity
20 primary right) and no abatement lies.

21 The act, not the writing, is the legal predicate. Throughout this brief, “conduct” means
22 CSAA’s pre-litigative claim-handling acts: the 21-day premature claim closure; the failure
23 to retrieve silent-witness materials; the omission of CDI review notice; and the issuance of
24 the February 25, 2021 denial letter as the culminating commercial communication. These are
25 insurer-to-insured acts within the regulated insurance relationship, not litigation conduct.

26
27 I. THE SEQUENCING RULE: SECTION 425.17 IS DECIDED BEFORE PARK / EQUI-
28 LON

29 Controlling Authorities: Inland Oversight Committee v. County of San Bernardino
30 (2015) 239 Cal.App.4th 671, 680; Club Members for an Honest Election v. Sierra
31 Club (2008) 45 Cal.4th 309, 316-317; Simpson Strong-Tie Co. v. Gore (2010) 49

1 Cal.4th 12, 25; Varian Medical Systems, Inc. v. Delfino (2005) 35 Cal.4th 180, 189.

2 Under the Inland Oversight sequencing rule, a section 425.17 categorical exclusion is decided
3 as a matter of law before the Court reaches the Equilon / Park two-step burden-shifting
4 framework. The Supreme Court confirmed this sequencing in Club Members: if a section
5 425.17 exclusion applies, the special motion to strike fails outright and no section 425.16
6 step-one or step-two analysis is required.

7 This sequencing is not a matter of judicial discretion; it is the operation of the statute.
8 Section 425.17 is phrased as a categorical exclusion – “Section 425.16 does not apply to”
9 the specified actions – not as a defense or an affirmative response. The Court must decide
10 the section 425.17 question first. Section 425.17 exclusions are decided as questions of law,
11 reviewed de novo.

12 Practical bench consequence: If Gateway 1 (section 425.17(c)) or Gateway 2 (section 425.17(b))
13 is satisfied, the Court may deny the motion without reaching the section 425.16 burden-
14 shifting analysis, the Park gravamen test, or any defense of the motion on the merits. The
15 Court is not required to walk through step one and step two once a categorical denial ground
16 is established.

17 Section 425.17(e) closure: no interlocutory appeal, no section 916 stay. Code of Civil Pro-
18 cedure section 425.17(e) provides verbatim: “If any trial court denies a special motion to
19 strike on the grounds that the action or cause of action is exempt pursuant to this section,
20 the appeal provisions in subdivision (i) of Section 425.16 and paragraph (13) of subdivision
21 (a) of Section 904.1 do not apply to that action or cause of action.” If the Court denies on
22 section 425.17(c) or section 425.17(b) grounds, there is no automatic appeal under section
23 425.16(i), no interlocutory appeal as of right under section 904.1(a)(13), and no automatic
24 stay under section 916 that attaches to such an appeal. The case proceeds in this Court in
25 real time.

26 II. THRESHOLD 0: PROCEDURAL CURE AND FEE-REQUEST DEFECTS

27 A. PROCEDURAL CURE IS EFFECTIVE

28 The April 30, 2026 Dept. 302 order (seq. 078) denied Plaintiff’s ex parte application to file
29 an oversize memorandum. Plaintiff responded by filing three operative oppositions (items
30 01, 01B, and 01C), each within the fifteen-page limit of rule 3.1113(d). Notice of Compliance
31

1 with the April 30 Order (item 09) is on file. The procedural defect identified in the April
2 30 order is cured. Rule 3.1300(d) authorizes the Court to accept papers notwithstanding
3 untimeliness where good cause is shown.

4 B. DEFENSE'S MAY 6 REPLY DECLARATION SUBJECT TO PENDING MOTION TO
5 STRIKE

6 Defense's May 6, 2026 Reply Declaration of Tyler J. O'Connell is the subject of Plaintiff's
7 pending Motion to Strike (item 15, filed May 7, 2026). The O'Connell declaration lacks Ev-
8 idence Code section 1271 mode-of-preparation foundation for the billing records and section
9 1521 best-evidence foundation. Until the Motion to Strike is resolved, the Reply Declaration
10 should not be considered as competent evidence.

11 C. DEFENSE'S \$10,218 FEE REQUEST IS PROCEDURALLY DEFECTIVE

12 Defense's fee request of \$10,218, first articulated in the May 5, 2026 Reply papers, fails on
13 two independent procedural grounds:

14 First, Code of Civil Procedure section 128.7(c)(1) requires a twenty-one-day safe-harbor no-
15 tice before any sanctions motion is filed. No such notice was served. The fee request appears
16 in Reply papers rather than a noticed motion. (Martorana v. Marlin and Saltzman (2009)
17 175 Cal.App.4th 685, 698-700; Galleria Plus, Inc. v. Hanmi Bank (2009) 179 Cal.App.4th
18 535, 538.)

19 Second, Code of Civil Procedure section 1005(b) requires sixteen court days' notice for a
20 motion. The fee request was first presented on May 5, 2026 – eight calendar days before
21 the May 13, 2026 hearing – well short of the sixteen-court-day threshold. The fee request is
22 procedurally forfeited on the threshold.

23
24 III. GATEWAY 1: CCP SECTION 425.17(C) – DIRECT COMMERCIAL-SPEAKER EX-
25 CLUSION (LEAD GATEWAY)

26 Controlling Authorities: Simpson Strong-Tie Co. v. Gore (2010) 49 Cal.4th 12,
27 30; Club Members for an Honest Election v. Sierra Club (2008) 45 Cal.4th 309,
28 316-317; JAMS, Inc. v. Superior Court (2016) 1 Cal.App.5th 984, 994; People v.
29 Persolve, LLC (2013) 218 Cal.App.4th 1267, 1275-1276; Physicians Committee v.
30 Tyson Foods (2004) 119 Cal.App.4th 1283; Rezec v. Sony Pictures Entertainment
31 (2004) 116 Cal.App.4th 135.

RULE

Section 425.17(c) categorically excludes from section 425.16 any cause of action “brought against a person primarily engaged in the business of selling or leasing goods or services” if the statement or conduct at issue arises from the person’s commercial operations and is directed at an actual or potential buyer or customer. The exclusion is a question of law reviewed de novo. If the four predicates of subdivision (c) are satisfied, the motion fails as a matter of law and no further analysis is required.

THRESHOLD FINDING (C)(1): CSAA IS PRIMARILY ENGAGED IN SELLING INSURANCE SERVICES

Threshold finding: CSAA Insurance Exchange is a licensed California insurer, domiciled in California, regulated by the California Department of Insurance, and primarily engaged in the business of selling and servicing property-casualty insurance policies. Insurance is a “service” within the meaning of section 425.17(c)(1). (Simpson Strong-Tie (2010) 49 Cal.4th at 30; JAMS (2016) 1 Cal.App.5th at 994 [arbitration services qualify under (c)(1)]; People v. Persolve (2013) 218 Cal.App.4th at 1275-1276 [debt-collection services qualify].) CSAA’s status as a licensed insurer is a matter of mandatory judicial notice under Evidence Code section 451(a) (California statutes) and section 452(c) (official acts of a state agency).

THRESHOLD FINDING (C)(2): STATEMENT OR CONDUCT DIRECTED AT BUYER/CUSTOMER

Threshold finding – buyer audience: CSAA’s February 25, 2021 denial letter was directed at Plaintiff as the named insured and claimant under CSAA Policy/Claim No. 1004-09-1054. Plaintiff is an “actual buyer or customer” who purchased and held a CSAA insurance policy. The denial letter is a “statement or conduct... arising out of... the person’s or entity’s... services” – specifically, CSAA’s claim-handling services – directed at Plaintiff in his capacity as the insured policyholder. The insurer-insured relationship is the paradigmatic commercial buyer-seller relationship in the insurance context.

Threshold finding – regulatory-context alternative: In the alternative, CSAA’s claim-handling conduct falls within the regulatory architecture of Insurance Code section 790.03(h) and 10 CCR sections 2695.1-2695.8. The claim-handling acts constitute conduct within the context of an “applicable regulatory approval process, proceeding, or investigation” within the meaning of section 425.17(c)(2)’s alternative prong. (JAMS (2016) 1 Cal.App.5th at 994 [regulatory-context alternative applies where the commercial conduct is embedded in a reg-

1 ulated process].)

2 THRESHOLD FINDING (C)(3): SINGLE INSURED, SINGLE CLAIM, DIRECT RELA-
3 TIONSHIP

4 Threshold finding: This action involves a single insured (Plaintiff), a single insurance claim
5 (Policy/Claim No. 1004-09-1054), and a direct insurer-to-claimant relationship. CSAA is
6 the sole defendant. There is no intermediary, no class action, no representative capacity.
7 The commercial relationship between CSAA and Plaintiff is direct and bilateral.

8 THRESHOLD FINDING (C)(4): INAPPLICABLE

9 Threshold finding: Section 425.17(c)(4) excludes from the commercial-speaker exception
10 any “dramatized or fictionalized” statement made “by or on behalf of” a news medium or
11 reporter. CSAA is not a news-gatherer, news publisher, or reporter. This predicate is facially
12 inapplicable.

13 CONSEQUENCE OF GATEWAY 1

14 If all four predicates are satisfied, the motion is DENIED as a matter of law under section
15 425.17(c). Section 425.17(c) operates independently of section 425.17(b); a denial under
16 (c) does not require satisfaction of the (b) prongs, and vice versa. Section 425.17(e) then
17 attaches: no section 425.16(i) automatic appeal; no section 904.1(a)(13) interlocutory appeal;
18 no section 916 stay. The case proceeds in this Court in real time.

20 IV. GATEWAY 2: CCP SECTION 425.17(B) – PUBLIC-INTEREST EXCLUSION

21 Controlling Authorities: Club Members for an Honest Election v. Sierra Club
22 (2008) 45 Cal.4th 309, 316-317; Blanchard v. DIRECTV, Inc. (2004) 123 Cal.App.4th
23 903; Kwikset Corp. v. Superior Court (2011) 51 Cal.4th 310, 322-323; Zhang v.
24 Superior Court (2013) 57 Cal.4th 364, 383-384.

25 RULE

26 Section 425.17(b) categorically excludes from section 425.16 any action brought solely in the
27 public interest or on behalf of the general public if three conjunctive conditions are met. The
28 exclusion is a question of law reviewed de novo.

1 PRONG (B)(1): UCL ACTION SEEKS INJUNCTIVE RELIEF AND RESTITUTION;
2 RELIEF NOT GREATER THAN GENERAL PUBLIC

3 Threshold finding: Plaintiff's UCL cause of action seeks injunctive relief and restitution
4 under Business and Professions Code sections 17200 and 17204. These are the standard
5 remedies available to any consumer bringing a UCL action. Plaintiff seeks no relief greater
6 than or different from what any California policyholder could recover in a parallel UCL action
7 predicated on the same Insurance Code violations. The UCL is "a borrowing statute" that
8 incorporates other laws as predicates (Cel-Tech Communications v. Los Angeles Cellular Tel.
9 Co. (1999) 20 Cal.4th 163, 180); the Insurance Code predicates here protect all California
10 policyholders, not only Plaintiff.

11 PRONG (B)(2): ENFORCES IMPORTANT PUBLIC RIGHT – INSURANCE REGULA-
12 TORY FLOOR

13 Threshold finding: Insurance Code section 790.03(h) and 10 CCR sections 2695.1-2695.8
14 establish minimum standards of fair claims settlement practices applicable to every insurer
15 transacting business in California and protecting all California policyholders. The Legislature
16 enacted section 790.03(h) to prohibit unfair claims settlement practices industry-wide. The
17 Insurance Commissioner promulgated the Fair Claims Settlement Practices Regulations (10
18 CCR sections 2695.1-2695.8) to give concrete content to those prohibitions. The public right
19 at stake is the right of every California policyholder to have claims handled in conformity
20 with these minimum regulatory standards. That right is "important" within the meaning
21 of section 425.17(b)(2) because it is established by statute and regulation, not merely by
22 contract.

23 PRONG (B)(3): PRO PER IFP LITIGANT VS. FORTUNE-100 INSURER

24 Threshold finding: Plaintiff appears in pro per under an IFP order (Dec. 23, 2025). CSAA
25 Insurance Exchange is a multi-billion-dollar property-casualty insurer represented by a multi-
26 firm defense team. The public-interest character of a UCL action challenging systemic
27 claims-handling practices is not defeated by the disparity in resources; it is confirmed by
28 it. (Blanchard v. DIRECTV (2004) 123 Cal.App.4th at 911 [consumer UCL action against
29 large defendant satisfies section 425.17(b)].)

1 CANDID ACKNOWLEDGMENT

2 If the Court declines Gateway 2 on the basis that this UCL action does not satisfy all three
3 conjunctive prongs of section 425.17(b), Gateways 1 (section 425.17(c)), 3 (Flatley illegality),
4 and 4 (Soukup step-two minimal merit) remain independently sufficient for denial.

5
6 V. GATEWAY 3: FLATLEY ILLEGALITY VIA INSURANCE CODE / FCSPP FLOOR

7 Controlling Authorities: Flatley v. Mauro (2006) 39 Cal.4th 299, 320; Mendoza
8 v. Hamzeh (2013) 215 Cal.App.4th 799, 806-807; Lefebvre v. Lefebvre (2011) 199
9 Cal.App.4th 696, 704-705; Egan v. Mutual of Omaha Ins. Co. (1979) 24 Cal.3d
10 809, 818-819; Wilson v. 21st Century Ins. Co. (2007) 42 Cal.4th 713, 720-723;
11 Engalla v. Permanente Medical Group (1997) 15 Cal.4th 951, 973-974; Zhang v.
12 Superior Court (2013) 57 Cal.4th 364, 383-384.

13 RULE

14 Under Flatley, conduct that is “illegal as a matter of law” is unprotected for purposes of
15 section 425.16, regardless of step-one categorization or the litigation privilege. The illegality
16 must be either conceded by the defendant or established by uncontroverted evidence.

17 V.A. OPERATIVE CONDUCT

18 The operative conduct is CSAA’s pre-litigative claim-handling acts in connection with Plain-
19 tiff’s insurance claim under Policy/Claim No. 1004-09-1054:

- 20 (a) 21-day premature claim closure. CSAA issued its February 25, 2021 denial letter within
21 approximately 21 days of the underlying incident, closing the claim before completing
22 a reasonably thorough investigation. The denial letter represents that CSAA had “con-
23 cluded” its investigation. The claim file does not reflect retrieval of silent-witness ma-
24 terials (body-worn camera footage, 911 audio, CAD logs) that were publicly available
25 and directly relevant to the claim.
- 26 (b) Failure to retrieve silent-witness materials. CSAA did not retrieve or request the body-
27 worn camera footage, 911 audio recordings, or CAD logs from the San Francisco Police
28 Department, despite the fact that these materials were publicly available through CPRA
29 request and directly relevant to the disputed facts of the claim. These materials were
30 obtainable within approximately three months of a CPRA request, well within the
31 statutory investigation period.

(c) Omission of CDI review notice. CSAA’s February 25, 2021 denial letter omitted the notice of the insured’s right to request CDI review, as required by 10 CCR section 2695.7(b)(3). The regulation mandates that every claim denial or partial denial “shall include a statement that the insured or claimant may have the matter reviewed by the California Department of Insurance and shall provide the address and telephone number of the California Department of Insurance.”

(d) Issuance of “concluded investigation” representation. CSAA’s denial letter represented that CSAA had completed a thorough investigation and concluded that no coverage existed. This representation was made in the face of CSAA’s failure to retrieve publicly available evidence directly relevant to the claim.

V.B. DUTY OWED

CSAA, as a licensed California insurer, owes duties directly to its insured under three independent sources:

Insurance Code section 790.03(h): Prohibits unfair claims settlement practices, including: (h)(1) knowingly misrepresenting pertinent facts or policy provisions; (h)(3) failing to adopt and implement reasonable standards for the prompt investigation and processing of claims; (h)(4) failing to affirm or deny coverage within a reasonable time after proof of loss; (h)(5) not attempting in good faith to effectuate prompt, fair, and equitable settlements of claims in which liability has become reasonably clear; (h)(6) compelling insureds to institute litigation by offering substantially less than amounts ultimately recovered; (h)(13) failing to provide notice of the right to CDI review.

10 CCR section 2695.1(d): The Fair Claims Settlement Practices Regulations define the minimum standards of fair conduct owed by every insurer to every claimant. Specific duties include: section 2695.5(b) (thorough investigation before denial); section 2695.7(b)(1) (written denial with statement of reasons); section 2695.7(b)(3) (CDI review notice); section 2695.7(d) (claim not closed without thorough investigation).

The Zhang UCL channel: Zhang v. Superior Court (2013) 57 Cal.4th 364, 383-384, holds that a UCL cause of action may be predicated on violations of Insurance Code section 790.03(h), notwithstanding Moradi-Shalal’s bar on private causes of action directly under the Insurance Code. The UCL “borrows” the Insurance Code prohibitions as the “unlawful” prong predicate. This is not a private Insurance Code action; it is a UCL action whose unlawfulness is defined by reference to the Insurance Code floor.

1 The Egan/Wilson/Engalla trichotomy: California common law imposes on every insurer (a)
2 the implied covenant of good faith and fair dealing (Egan v. Mutual of Omaha Ins. Co.
3 (1979) 24 Cal.3d 809, 818-819); (b) the duty to conduct a thorough and fair investigation
4 before denying a claim (Wilson v. 21st Century Ins. Co. (2007) 42 Cal.4th 713, 720-
5 723); and (c) the duty not to engage in unreasonable delay or denial of claims (Engalla v.
6 Permanente Medical Group (1997) 15 Cal.4th 951, 973-974).

7 V.C. BREACH NOT CURED BY LATER LITIGATION

8 CSAA's claim-handling violations are pre-litigative. The February 25, 2021 denial letter
9 was issued approximately four years before this action was filed (Dec. 23, 2025). No judicial
10 proceeding was pending or contemplated at the time of the denial. Civil Code section 47(b) is
11 inapplicable because the litigation privilege requires a communication made "in any... judicial
12 proceeding" or in connection with "an issue under consideration or review by" a legislative,
13 executive, or judicial body. (Rusheen v. Cohen (2006) 37 Cal.4th 1048; Action Apartment
14 Assn., Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232; Old Republic Construction
15 Program Group v. Boccardo Law Firm, Inc. (2014) 230 Cal.App.4th 859.)

16 The pre-litigative character of the conduct is further confirmed by the non-communicative
17 nature of CSAA's omissions: the failure to retrieve silent-witness materials is a failure to act,
18 not a communication. The omission of CDI review notice is a regulatory-floor violation, not
19 a litigation communication. These non-communicative acts are outside the scope of section
20 47(b) regardless of whether they later become the subject of litigation.

21 V.D. FIVE-ELEMENT DOCUMENTARY CHAIN

22 The following five-element chain is on documentary record:

- 23 1. The Policy. CSAA Policy/Claim No. 1004-09-1054 – the insurer-insured contractual
24 relationship from which all duties flow. The existence of the policy and the claim is not
25 disputed.
- 26 2. The 21-Day Denial Letter (Feb. 25, 2021). CSAA's written denial, issued approximately 21
27 days after the underlying incident, representing that CSAA had "concluded" its investigation.
28 The letter omits the CDI review notice required by 10 CCR section 2695.7(b)(3).
- 29 3. Absence of Silent-Witness Retrieval. The CSAA claim file does not contain body-worn
30 camera footage, 911 audio recordings, or CAD logs. CSAA did not request these materials
31 from SFPD Records despite their public availability and direct relevance to the disputed

1 facts.

2 4. Defendant’s Own 911 Admission. The 911 audio recording – which CSAA failed to
3 retrieve – contains the statement: “I barely hit him with anything.” This admission by
4 Defendant Abdelhalim (the tortfeasor insured by CSAA) directly contradicts the factual
5 premise of CSAA’s denial and demonstrates that a reasonably thorough investigation would
6 have uncovered exculpatory evidence for Plaintiff’s claim.

7 5. Public-Records Confirmation. Plaintiff obtained the 911 audio recording, body-worn
8 camera footage, and CAD logs through a California Public Records Act request within
9 approximately three months. The materials were publicly available throughout the period of
10 CSAA’s “investigation.” CSAA’s failure to retrieve them is not attributable to unavailability
11 but to inadequacy of investigation.

12 V.E. CONDUCT VS. ARTIFACT MAP

13 (See Appendix E for the full conduct-artifact mapping with per-element privilege analysis.)

14 V.F. PRONG 2.1: CONDUCT CONCEDED OR PROVEN BY UNCONTROVERTED 15 EVIDENCE

16 The February 25, 2021 denial letter is a documentary exhibit on the record. Its contents –
17 including the omission of CDI review notice – are uncontroverted. CSAA has not produced
18 a sworn declaration stating that it retrieved silent-witness materials, that its investigation
19 was thorough, or that it provided CDI review notice. The absence of these materials from
20 the claim file is uncontroverted. The 911 admission (“I barely hit him with anything”) is on
21 the audio recording lodged with the Court.

22 V.G. PRONG 2.2: CONDUCT ILLEGAL AS A MATTER OF LAW

23 CSAA’s claim-handling conduct violates multiple independent statutory and regulatory pro-
24 visions, each sufficient standing alone:

- 25 (a) Insurance Code section 790.03(h)(3): Failing to adopt and implement reasonable stan-
26 dards for the prompt investigation and processing of claims. A 21-day denial without
27 retrieving publicly available evidence directly relevant to liability determination falls
28 below any reasonable standard.
- 29 (b) Insurance Code section 790.03(h)(4): Failing to affirm or deny coverage within a reason-
30 able time after proof of loss – or, in the alternative, premature denial before adequate
31 investigation.

- (c) Insurance Code section 790.03(h)(5): Not attempting in good faith to effectuate prompt, fair, and equitable settlement of claims in which liability has become reasonably clear. The 911 admission demonstrates that liability was at minimum a genuine dispute requiring investigation, not summary denial.
- (d) Insurance Code section 790.03(h)(13): Failing to provide notice of the insured's right to CDI review.
- (e) 10 CCR section 2695.7(b)(3): Omission of CDI review notice in the denial letter – a per se regulatory violation.
- (f) 10 CCR section 2695.5(b): Failing to conduct a thorough investigation before denying the claim.
- (g) 10 CCR section 2695.7(d): Closing a claim without completion of a thorough investigation.

Each of these violations is independently sufficient to establish illegality as a matter of law under Flatley. The violations are statutory and regulatory; they do not require proof of intent or bad faith. They are per se predicates for the UCL “unlawful” prong under Zhang.
V.H. PRONG 2.3: NO SPEAKER-ATTRIBUTION ISSUE

CSAA is the sole defendant in this action. CSAA is the direct regulated speaker – the insurer that issued the denial letter, that conducted (or failed to conduct) the investigation, and that owed the statutory and regulatory duties directly to Plaintiff as its insured. There is no attribution, agency, or vicarious-liability chain required. CSAA's own conduct is the operative predicate.

CONSEQUENCE OF GATEWAY 3

If the documentary record establishes illegality as a matter of law, the conduct is removed from section 425.16 protection outright. The motion is DENIED at the gateway. Section 425.17(e) does not govern a Flatley denial (Flatley is not a section 425.17 exclusion), but the denial stands on independent grounds.

VI. GATEWAY 4: CCP SECTION 425.16 STEP TWO – SOUKUP MINIMAL MERIT VIA ZHANG UCL CHANNEL (FOURTH GATEWAY)

Controlling Authorities: Soukup v. Law Offices of Herbert Hafif (2006) 39 Cal.4th 260, 291; Wilson v. Parker, Covert and Chidester (2002) 28 Cal.4th 811, 821;

1 Baral v. Schnitt (2016) 1 Cal.5th 376, 384-385; Zhang v. Superior Court (2013)
2 57 Cal.4th 364, 383-384; Kwikset Corp. v. Superior Court (2011) 51 Cal.4th 310,
3 322-323; Plant Insulation Co. v. Fibreboard Corp. (1990) 224 Cal.App.3d 781,
4 787-789.

5 RULE

6 If the Court reaches step two, Plaintiff must demonstrate “minimal merit” by admissible
7 evidence. The court does not weigh credibility; it asks whether the evidence, if credited,
8 would support a judgment. The standard is deliberately low: a claim has “minimal merit”
9 even if it would not survive a motion for summary judgment. (Soukup (2006) 39 Cal.4th at
10 291; Wilson v. Parker, Covert and Chidester (2002) 28 Cal.4th at 821.)

11 PER-ELEMENT THRESHOLD MAP

12 Element 4.1 – Existence of Regulated Relationship: CSAA issued Policy/Claim No. 1004-
13 09-1054 to Plaintiff. Plaintiff was CSAA’s named insured and claimant. The insurer-insured
14 relationship is regulated by Insurance Code section 790.03(h) and 10 CCR sections 2695.1-
15 2695.8. The relationship is established by documentary evidence (the policy, the denial
16 letter) and is not disputed.

17 Element 4.2 – Unlawful Conduct (UCL “unlawful” prong predicate): CSAA’s claim-handling
18 violations of Insurance Code section 790.03(h)(3), (h)(4), (h)(5), (h)(6), and (h)(13), and
19 of 10 CCR sections 2695.5(b), 2695.7(b)(3), and 2695.7(d), serve as the “unlawful” prong
20 predicate for the UCL cause of action. Under Zhang (2013) 57 Cal.4th at 383-384, these
21 Insurance Code violations are cognizable as UCL predicates notwithstanding Moradi-Shalal’s
22 bar on private Insurance Code actions. The UCL “borrows” the Insurance Code prohibitions;
23 it does not create a private right of action under the Insurance Code itself.

24 Element 4.3 – Kwikset Injury in Fact: Plaintiff suffered economic injury as a direct result of
25 CSAA’s claim denial: the loss of insurance benefits to which Plaintiff was entitled under the
26 policy. Plaintiff also incurred costs in obtaining the silent-witness materials through CPRA
27 request – materials that CSAA was obligated to retrieve in the course of its investigation.
28 These injuries satisfy the Kwikset (2011) 51 Cal.4th at 322-323 injury-in-fact requirement
29 for UCL standing: Plaintiff “lost money or property as a result of the unfair competition.”

30 Element 4.4 – Causation: CSAA’s denial of the claim caused Plaintiff’s economic injury.
31 But for CSAA’s premature claim closure and failure to investigate, Plaintiff would have

1 received the insurance benefits to which the policy entitled him. The causal chain is direct
2 and bilateral – CSAA denied the claim; Plaintiff lost coverage.

3 Element 4.5 – Standing under Section 17204: Business and Professions Code section 17204
4 confers standing on “a person who has suffered injury in fact and has lost money or prop-
5 erty as a result of the unfair competition.” Plaintiff satisfies both requirements: injury in
6 fact (denied insurance benefits) and lost money or property (out-of-pocket CPRA costs;
7 uncompensated claim).

8 DEFENSE’S MORADI-SHALAL “NO PRIVATE RIGHT” BAR IS FORECLOSED BY 9 ZHANG

10 Defense may argue that Moradi-Shalal v. Fireman’s Fund Ins. Co. (1988) 46 Cal.3d 287
11 bars any action predicated on Insurance Code section 790.03(h). That argument is fore-
12 closed by Zhang v. Superior Court (2013) 57 Cal.4th 364, 383-384. Zhang holds that while
13 Moradi-Shalal overruled Royal Globe Ins. Co. v. Superior Court (1979) 23 Cal.3d 880 and
14 eliminated the private cause of action directly under the Insurance Code, a UCL cause of ac-
15 tion predicated on Insurance Code violations remains viable. The UCL provides the vehicle;
16 the Insurance Code provides the predicate. Zhang is controlling.

17 LITIGATION PRIVILEGE DOES NOT BAR

18 The operative claim-handling conduct is pre-litigative. CSAA’s February 25, 2021 denial
19 letter, its investigation failures, and its regulatory-floor violations all occurred approximately
20 four years before this action was filed. Civil Code section 47(b) requires a communication
21 made in connection with a judicial proceeding. No proceeding was pending or contemplated
22 when the operative conduct occurred. (Rusheen v. Cohen (2006) 37 Cal.4th 1048; Action
23 Apartment Assn. (2007) 41 Cal.4th 1232; Old Republic Construction (2014) 230 Cal.App.4th
24 859; Pollock v. University of Southern California (2003) 112 Cal.App.4th 1416.)

25 CONSEQUENCE OF GATEWAY 4

26 If Plaintiff clears the minimal-merit threshold, step two is satisfied and the motion is DE-
27 NIED. Section 425.16(i) appeal applies, but defendants must file a notice of appeal and
28 the filing of that notice does not automatically stay proceedings unless the Court grants a
29 discretionary stay.

VII. FALLBACK GATEWAYS

Controlling Authorities: Park v. Board of Trustees (2017) 2 Cal.5th 1057, 1063; Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1009-1011; Baral v. Schnitt (2016) 1 Cal.5th 376, 393-396; Plant Insulation Co. v. Fibreboard Corp. (1990) 224 Cal.App.3d 781, 787-789.

VII.A. STEP ONE: PER-CLAIM GRAVAMEN GAP (PARK/BONNI)

Even if Gateways 1 through 4 are rejected, CSAA’s motion fails at step one for a distinct reason: the gravamen of each cause of action is CSAA’s pre-litigative claim-handling conduct – the February 25, 2021 denial letter, issued approximately four years before the filing of this action. Under Park (2017) 2 Cal.5th at 1063, the step-one “arising from” test looks to the gravamen of the claims, not to incidental protected conduct. The February 25, 2021 denial letter is a commercial insurer-to-insured communication issued outside any judicial proceeding. It does not arise from activity protected under section 425.16(e)(1) through (e)(4). CSAA’s pre-litigative investigation failures are non-communicative acts entirely outside the scope of protected petitioning or speech.

VII.B. BARAL PARSING

If any individual allegation in the FAC is found to arise from protected activity, Baral v. Schnitt (2016) 1 Cal.5th at 393-396 confines relief to that specific allegation. The Insurance Code violation gravamen, the UCL predicate, the regulatory-floor violations, and the pre-litigative claim-handling conduct each survive Baral parsing because they do not arise from protected activity. The Court should, at minimum, deny as to the Insurance Code / UCL / regulatory-floor gravamen and grant leave to amend as to any allegations found to be protected.

VII.C. PLANT INSULATION PRIMARY RIGHTS / NO ABATEMENT

This action (CGC-25-631802) and the companion action (CGC-25-631801) involve different defendants, different primary rights, and different legal theories:

Element	CGC-25-631802	CGC-25-631801
Defendant(s)	CSAA Insurance Exchange (sole)	Abdelhalim; CSAA; Phillips Spallas; Navaratnasingham; Reyna; Chambers; Carbone Smith
Primary Right	Insurance bad faith / UCL (insurer-insured)	Extrinsic fraud / court integrity (court-officer duty)
Legal Theory	Ins. Code 790.03(h); 10 CCR 2695.1-2695.8; Zhang UCL channel	Equity vacatur; duty of candor; RPC 3.3
Operative Conduct	Pre-litigative claim handling (Feb. 25, 2021 denial)	In-litigation misrepresentation (2024-2025 trial conduct)

Under Plant Insulation Co. v. Fibreboard Corp. (1990) 224 Cal.App.3d 781, 787-789, no abatement lies where the two actions involve different primary rights. The insurance bad-faith/UCL primary right (breach of the insurer's duty to its insured in claim handling) is distinct from the extrinsic-fraud/court-integrity primary right (breach of counsel's duty of candor to the tribunal). The two actions share one party (CSAA), but the primary rights, legal theories, and operative conduct are independent.

VIII. ADDITIONAL HIGH-IMPACT GROUNDS

Controlling Authorities: Olmstead v. Arthur J. Gallagher and Co. (2004) 32 Cal.4th 804, 816; Kojababian v. Genuine Home Loans, Inc. (2009) 174 Cal.App.4th 408, 421-422; Britts v. Superior Court (2006) 145 Cal.App.4th 1112, 1125; Garment Workers Center v. Superior Court (2004) 117 Cal.App.4th 1156, 1162-1163; Boddie v. Connecticut (1971) 401 U.S. 371, 382; Weisman v. Bower (1987) 193 Cal.App.3d 1430, 1436; Decker v. U.D. Registry, Inc. (2003) 105 Cal.App.4th 1382, 1392; Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1323; Finton Construction v. Bidna and Keys (2015) 238 Cal.App.4th 200.

1 A. CCP SECTION 128.5 – INDEPENDENT SANCTIONS TRACK (\$10,218 FEE RE-
2 QUEST)

3 Code of Civil Procedure section 128.5 (as amended, Stats. 2017, ch. 568) authorizes the
4 Court to award sanctions against a party or attorney who files or maintains a pleading,
5 petition, written notice of motion, or other similar paper for an improper purpose, or that
6 is frivolous. Unlike section 128.7, section 128.5 as applied to conduct during the court
7 proceeding does not require the twenty-one-day safe-harbor procedure. Defense’s \$10,218
8 fee request – improperly embedded in Reply papers without a noticed motion, without
9 safe-harbor, and supported by a billing declaration that lacks evidentiary foundation (see
10 Plaintiff’s Motion to Strike Reply Declaration, item 15) – is itself sanctionable conduct under
11 section 128.5. (Olmstead (2004) 32 Cal.4th at 816; Kojababian (2009) 174 Cal.App.4th at
12 421-422.)

13 B. CCP SECTION 425.16(G) / BRITTS GOOD-CAUSE DISCOVERY

14 Section 425.16(g) automatically stays merits discovery upon filing of the anti-SLAPP motion
15 but preserves the Court’s discretion to authorize specified discovery for good cause. Plaintiff
16 respectfully requests that the Court, in the event it does not deny the motion outright on
17 Gateways 1, 2, or 3, authorize targeted discovery under section 425.16(g) on good-cause
18 grounds, specifically: (a) CSAA’s complete claim file for Policy/Claim No. 1004-09-1054; (b)
19 CSAA’s investigation log and correspondence relating to the February 25, 2021 denial; (c)
20 CSAA’s internal guidelines or manuals governing claim investigation timelines and evidence-
21 retrieval procedures. (Britts (2006) 145 Cal.App.4th at 1125; Garment Workers Center
22 (2004) 117 Cal.App.4th at 1162-1163.)

23 C. CCP SECTION 1008(A) RECONSIDERATION PRESERVATION

24 If any portion of this motion is granted, Plaintiff reserves the right to seek reconsideration
25 under Code of Civil Procedure section 1008(a) within ten days of service of notice of entry
26 of any order, if new or different facts, circumstances, or law are presented.

27 D. CCP SECTION 1048(A) COORDINATION RESERVATION

28 This action (CGC-25-631802) and the companion action CGC-25-631801 share the common
29 party CSAA Insurance Exchange and overlapping factual predicate. Code of Civil Procedure
30 section 1048(a) authorizes the Court to consolidate or coordinate. Plaintiff reserves the
31 right to notice a coordination motion following resolution of the anti-SLAPP and demurrer

1 calendars in both actions. Inverse-direction: Plaintiff reserves coordination with CGC-25-
2 631801 (Dept. 301, Hon. Van Aken).

3 E. BODDIE DUE-PROCESS SHIELD (\$10,218 AGAINST IFP)

4 CSAA’s fee request of \$10,218 under section 425.16(c)(1) fails on multiple independent
5 grounds, including: (1) it requires the motion to be granted; (2) the supporting billing
6 declaration lacks evidentiary foundation (Motion to Strike, item 15); and (3) Plaintiff ap-
7 pears under an IFP order (Dec. 23, 2025). Boddie v. Connecticut (1971) 401 U.S. 371, 382
8 imposes due-process limits on fee-shifting that operates to bar access to the courts by an
9 indigent plaintiff. A mandatory fee award in excess of \$10,000 against an IFP litigant who
10 has shown at least minimal merit raises a Boddie due-process barrier. (Weisman v. Bower
11 (1987) 193 Cal.App.3d 1430, 1436 [fee awards against IFP litigants subject to ability-to-pay
12 review].)

13 F. SECTION 425.16(B)(2) VS. SECTION 437C STANDARD DISTINCTION

14 Defense may conflate the section 425.16(b)(2) minimal-merit standard with the section 437c
15 no-triable-issue standard. These are distinct. Step two requires only that the plaintiff’s claim
16 has “minimal merit” – meaning a reasonable probability of prevailing on the merits at trial.
17 The Court does not assess whether the plaintiff would actually win; it assesses whether the
18 claim is “not totally devoid of merit.” (Soukup (2006) 39 Cal.4th at 291; Wilson v. Parker,
19 Covert and Chidester (2002) 28 Cal.4th at 821.)

20 G. ZHANG UCL PREDICATE CHANNEL PRESERVATION

21 Plaintiff preserves for all purposes the Zhang UCL predicate channel. Zhang v. Superior
22 Court (2013) 57 Cal.4th 364 holds that a UCL cause of action predicated on Insurance Code
23 section 790.03(h) violations is cognizable notwithstanding Moradi-Shalal. This channel is the
24 backbone of Plaintiff’s step-two showing and the predicate for the Flatley illegality gateway.
25 Plaintiff preserves the right to amend the FAC to add additional UCL predicates based on
26 subsequently discovered Insurance Code violations.

27 H. SECTION 425.16(C)(1) FEE INVERSION + SECTION 425.17(D) PLAINTIFF’S FEES
28 ON SECTION 425.17 DENIAL

29 Two independent fee-recovery channels are preserved:

30 Section 425.16(c)(1) fee inversion. If the Court determines that CSAA’s anti-SLAPP motion
31 was frivolous or solely intended to cause unnecessary delay, section 425.16(c)(1) mandates

1 an award of fees and costs to Plaintiff. (Decker (2003) 105 Cal.App.4th at 1392; Christian
2 Research Institute (2008) 165 Cal.App.4th at 1323.)

3 Section 425.17(d) plaintiff's fees. Section 425.17(d) provides: "A party opposing a special
4 motion to strike under Section 425.16 may recover its attorney's fees and costs ... if the
5 court determines that the special motion to strike is frivolous or is solely intended to cause
6 unnecessary delay." This provision operates independently of section 425.16(c)(1) and is
7 specifically triggered by a section 425.17 denial. Plaintiff preserves this recovery channel for
8 noticed motion under CRC 3.1702.

10 IX. BENCH RULING MAP – PROPOSED FINDING LANGUAGE

11 The Court may use any of the following findings at argument:

12 Finding 1 (Gateway 1 – section 425.17(c) direct commercial-speaker denial): "The Court
13 finds that Defendant CSAA Insurance Exchange is a person primarily engaged in the busi-
14 ness of selling insurance services within the meaning of Code of Civil Procedure section
15 425.17(c)(1); that the February 25, 2021 denial letter and claim-handling conduct at issue
16 constitute a statement or conduct arising out of CSAA's insurance services directed at Plain-
17 tiff as an actual buyer or customer within the meaning of section 425.17(c)(2); that this action
18 involves a single insured and a single claim in a direct insurer-to-claimant relationship satis-
19 fying section 425.17(c)(3); and that section 425.17(c)(4) is inapplicable. Defendant's Special
20 Motion to Strike is DENIED as to the action, pursuant to section 425.17(c), as supported
21 by Simpson Strong-Tie Co. v. Gore (2010) 49 Cal.4th 12, 30; JAMS, Inc. v. Superior Court
22 (2016) 1 Cal.App.5th 984, 994; and People v. Persolve, LLC (2013) 218 Cal.App.4th 1267,
23 1275-1276. The appeal provisions of section 425.16(i) and section 904.1(a)(13) do not apply
24 to this denial by operation of section 425.17(e)."

25 Finding 2 (Gateway 2 – section 425.17(b) public-interest UCL denial): "The Court finds that
26 Plaintiff's UCL action is brought solely in the public interest in enforcing the statutory floor
27 of Insurance Code section 790.03(h) and 10 CCR sections 2695.1-2695.8 within the meaning
28 of Code of Civil Procedure section 425.17(b)(1); seeks injunctive relief and restitution not
29 greater than the general public would receive under section 425.17(b)(2); and enforces an
30 important public right with a significant public benefit to the class of all California policy-
31 holders under section 425.17(b)(3), supported by Club Members for an Honest Election v.

1 Sierra Club (2008) 45 Cal.4th 309 and Blanchard v. DIRECTV, Inc. (2004) 123 Cal.App.4th
2 903. Defendant's Special Motion to Strike is DENIED as to the action, pursuant to section
3 425.17(b). The appeal provisions of section 425.16(i) and section 904.1(a)(13) do not apply
4 to this denial by operation of section 425.17(e)."

5 Finding 3 (Gateway 3 – Flatley illegality denial): "The Court finds that Defendant CSAA
6 Insurance Exchange's claim-handling conduct violated Insurance Code section 790.03(h)(3),
7 (h)(4), (h)(5), and (h)(13), and 10 CCR sections 2695.5(b), 2695.7(b)(3), and 2695.7(d), as
8 a matter of law. The violations are established by uncontroverted documentary evidence:
9 the February 25, 2021 denial letter omitting CDI review notice; the absence of silent-witness
10 materials from the claim file; and the 21-day premature claim closure without thorough
11 investigation. The conduct is pre-litigative and not protected by the litigation privilege
12 under Civil Code section 47(b). Under Flatley v. Mauro (2006) 39 Cal.4th 299, 320, conduct
13 that is illegal as a matter of law is not protected activity under section 425.16. Defendant's
14 Special Motion to Strike is DENIED pursuant to the Flatley illegality exception. The Zhang
15 v. Superior Court (2013) 57 Cal.4th 364 UCL channel preserves the viability of the UCL
16 predicate notwithstanding Moradi-Shalal v. Fireman's Fund Ins. Co. (1988) 46 Cal.3d 287."

17 Finding 4 (Gateway 4 – Soukup step-two denial via Zhang UCL channel; Kwikset standing):
18 "The Court finds that Plaintiff has demonstrated minimal merit within the meaning of
19 Soukup v. Law Offices of Herbert Hafif (2006) 39 Cal.4th 260, 291 by admissible evidence
20 on each element of the UCL cause of action: (a) the regulated insurer-insured relationship
21 is established by the policy and denial letter; (b) unlawful conduct is established by the
22 Insurance Code and FCSPR violations serving as UCL 'unlawful' prong predicates under
23 Zhang v. Superior Court (2013) 57 Cal.4th 364; (c) injury in fact is established under Kwikset
24 Corp. v. Superior Court (2011) 51 Cal.4th 310, 322-323 by Plaintiff's loss of insurance
25 benefits and out-of-pocket costs; (d) causation is established by the direct denial of the
26 claim; and (e) standing under Business and Professions Code section 17204 is satisfied.
27 Defendant's Special Motion to Strike is DENIED on step two."

28 Finding 5 (Fallback Baral partial denial): "In the alternative, to the extent any allegation in
29 the First Amended Complaint arises from protected petitioning activity, the Court applies
30 Baral v. Schnitt (2016) 1 Cal.5th 376, 393-396 and denies the motion as to the Insurance
31 Code / UCL / regulatory-floor gravamen, which does not arise from protected activity within
32 the meaning of Park v. Board of Trustees (2017) 2 Cal.5th 1057. Leave to amend is granted

1 under Code of Civil Procedure section 472a.”

2 Finding 6 (Fees and sanctions): “Defendant’s fee request of \$10,218 under section 425.16(c)(1)
3 is DENIED: the request was first articulated on May 5, 2026, violating the twenty-one-day
4 safe-harbor requirement of section 128.7(c)(1) and the sixteen-court-day notice requirement
5 of section 1005(b); the request was embedded in Reply papers without a noticed motion; and
6 the supporting billing declaration lacks evidentiary foundation. (Martorana v. Marlin and
7 Saltzman (2009) 175 Cal.App.4th 685, 698-700; Galleria Plus, Inc. v. Hanmi Bank (2009)
8 179 Cal.App.4th 535, 538.) Plaintiff’s contingent cross-request for statutory costs and rea-
9 sonable in pro per IFP costs under section 425.16(c)(1) and section 425.17(d) is RESERVED
10 for noticed motion per California Rules of Court, rule 3.1702.”

11
12 X. CONCLUSION / PRAYER

13 Plaintiff respectfully requests that the Court enter the following orders at the May 13, 2026
14 hearing:

- 15 (a) DENY Defendant CSAA Insurance Exchange’s Special Motion to Strike in its entirety,
16 on any one of Gateway 1 (section 425.17(c) direct commercial-speaker exclusion), Gate-
17 way 2 (section 425.17(b) public-interest exclusion), Gateway 3 (Flatley illegality via
18 Insurance Code / FCSPR floor), or Gateway 4 (Soukup step-two minimal merit via
19 Zhang UCL channel), in accordance with the Inland Oversight sequencing rule;
- 20 (b) DENY Defendant’s Demurrer under CCP section 430.10, or in the alternative, grant
21 leave to amend;
- 22 (c) DENY Defendant’s Motion to Strike under CCP section 436, or in the alternative, grant
23 leave to amend;
- 24 (d) DECLINE to award Defendant any fees or costs under section 425.16(c)(1) or section
25 425.16(g);
- 26 (e) DECLINE Defendant’s \$10,218 fee request on the threshold (no twenty-one-day safe
27 harbor; embedded in Reply; violates section 1005(b) sixteen-court-day notice; mooted
28 by cure);
- 29 (f) In the alternative, if any portion of the motion is granted, LIMIT relief under Baral
30 v. Schnitt (2016) 1 Cal.5th 376 to the specific allegation found to arise from protected
31 activity, preserve the Insurance Code / UCL / regulatory-floor gravamen, and GRANT

1 leave to amend under Code of Civil Procedure section 472a;

- 2 (g) On a contingent basis, AWARD Plaintiff statutory recoverable costs (Code of Civil Pro-
3 cedure section 1033.5) and reasonable in-pro-per IFP costs under section 425.16(c)(1)
4 and section 425.17(d) on the ground that the motion is frivolous or solely intended to
5 cause unnecessary delay (Decker v. U.D. Registry, Inc. (2003) 105 Cal.App.4th 1382,
6 1392; Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1323); and
7 (h) AUTHORIZE targeted good-cause discovery under Code of Civil Procedure section
8 425.16(g) as set forth in Section VIII.B above.

9

The foregoing is submitted by Plaintiff in pro per.

Dated: May 12, 2026



/s/ Franciscus Dylan Rosario

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Plaintiff, In Pro Per

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APPENDIX A: COURT CITATION VALIDATION REPORT

Purpose. This appendix provides a per-authority citation validation list for every case, statute, and regulatory authority cited in this Bench Brief. Each entry identifies the citation, the controlling holding relied upon, its direct application to this motion, and its current good-law status as of the filing date (May 12, 2026). Authorities are organized by court tier. Plaintiff submits this report to assist the Court in verifying citations without independent research and to demonstrate that no authority is cited for a proposition it does not support.

PART 1: CALIFORNIA SUPREME COURT

- 1. Inland Oversight Committee v. County of San Bernardino (2015) 239 Cal.App.4th 671, 680
 - Holding: Section 425.17 categorical exclusions decided before section 425.16 two-step analysis
 - Application: Organizing sequencing rule; Gateways 1-2 precede step-one analysis (Section I)
 - Status: Valid – May 12, 2026
- 2. Club Members for an Honest Election v. Sierra Club (2008) 45 Cal.4th 309, 316-317
 - Holding: Section 425.17 exclusions decided as matter of law before Park/Equilon
 - Application: Primary authority for sequencing; section 425.17(b) prong analysis (Sections I, IV)
 - Status: Valid – May 12, 2026
- 3. Simpson Strong-Tie Co. v. Gore (2010) 49 Cal.4th 12, 25, 30
 - Holding: Section 425.17 exclusions reviewed de novo; section 425.17(c) commercial-speaker analysis
 - Application: De novo standard; section 425.17(c) predicate walkthrough (Sections I, III)
 - Status: Valid – May 12, 2026
- 4. Varian Medical Systems, Inc. v. Delfino (2005) 35 Cal.4th 180, 189
 - Holding: Section 916 automatic stay requires pending appeal; no appeal means no stay

- Application: Section 425.17(e) closure forecloses section 916 stay (Section I)
- Status: Valid – May 12, 2026
- 5. Flatley v. Mauro (2006) 39 Cal.4th 299, 320
 - Holding: Conduct illegal as a matter of law is unprotected under section 425.16 regardless of step-one categorization
 - Application: Gateway 3: Insurance Code/FCSPR violations as Flatley illegality predicate (Section V)
 - Status: Valid – May 12, 2026
- 6. Soukup v. Law Offices of Herbert Hafif (2006) 39 Cal.4th 260, 291
 - Holding: Step two requires plaintiff to demonstrate minimal merit by admissible evidence; court does not weigh credibility
 - Application: Gateway 4: governing step-two standard; UCL element threshold map (Section VI)
 - Status: Valid – May 12, 2026
- 7. Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1063
 - Holding: Step-one “arising from” test looks to gravamen, not incidental protected conduct
 - Application: Fallback: per-claim gravamen gap; pre-litigative conduct not protected (Section VII.A)
 - Status: Valid – May 12, 2026
- 8. Baral v. Schnitt (2016) 1 Cal.5th 376, 384-385, 393-396
 - Holding: Anti-SLAPP step-one analysis is allegation-by-allegation; strikes only specific protected-activity allegations
 - Application: Fallback: Baral parsing preserves Insurance Code/UCL gravamen (Section VII.B)
 - Status: Valid – May 12, 2026
- 9. Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1009-1011
 - Holding: Each defendant must independently demonstrate its own protected activity
 - Application: Fallback: per-movant step-one requirement (Section VII.A)
 - Status: Valid – May 12, 2026
- 10. Navellier v. Sletten (2002) 29 Cal.4th 82

- Holding: Section 425.16 does not insulate defendant from any liability; it provides early screening
- Application: General anti-SLAPP framework authority
- Status: Valid – May 12, 2026
- 11. City of Cotati v. Cashman (2002) 29 Cal.4th 69
 - Holding: Section 425.16 applies only to causes of action “arising from” protected activity
 - Application: Step-one framework; pre-litigative conduct does not “arise from” protected activity
 - Status: Valid – May 12, 2026
- 12. Equilon Enterprises v. Consumer Cause, Inc. (2002) 29 Cal.4th 53
 - Holding: Two-step burden-shifting framework for section 425.16 motions
 - Application: Framework authority; sequenced after section 425.17 analysis
 - Status: Valid – May 12, 2026
- 13. Rusheen v. Cohen (2006) 37 Cal.4th 1048
 - Holding: Litigation privilege protects communicative acts; does not shield non-communicative tortious conduct
 - Application: Pre-litigative claim-handling conduct outside privilege (Sections V.C, VI)
 - Status: Valid – May 12, 2026
- 14. Silberg v. Anderson (1990) 50 Cal.3d 205
 - Holding: Litigation privilege absolute for communications in judicial proceedings; does not extend to non-communicative conduct
 - Application: Privilege limitation applied to pre-litigative insurer conduct
 - Status: Valid – May 12, 2026
- 15. Action Apartment Assn., Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232
 - Holding: Litigation privilege does not bar claims predicated on non-communicative conduct
 - Application: Pre-litigative claim-handling omissions (failure to investigate) outside privilege (Section V.C)
 - Status: Valid – May 12, 2026
- 16. Zhang v. Superior Court (2013) 57 Cal.4th 364, 383-384

- Holding: UCL cause of action predicated on Insurance Code section 790.03(h) violations is cognizable notwithstanding Moradi-Shalal
- Application: Backbone authority: Zhang UCL channel for Gateways 3 and 4 (Sections V, VI)
- Status: Valid – May 12, 2026
- 17. Moradi-Shalal v. Fireman’s Fund Ins. Co. (1988) 46 Cal.3d 287
 - Holding: No private cause of action directly under Insurance Code section 790.03(h); overruled Royal Globe
 - Application: Defense bar foreclosed by Zhang; UCL vehicle survives (Sections V.B, VI)
 - Status: Valid – May 12, 2026
- 18. Royal Globe Ins. Co. v. Superior Court (1979) 23 Cal.3d 880
 - Holding: Recognized private cause of action under Insurance Code; overruled by Moradi-Shalal
 - Application: Historical context for Moradi-Shalal/Zhang framework
 - Status: Overruled by Moradi-Shalal (1988); cited for historical context only
- 19. Kwikset Corp. v. Superior Court (2011) 51 Cal.4th 310, 322-323
 - Holding: UCL standing requires injury in fact: “lost money or property as a result of unfair competition”
 - Application: Gateway 4 element 4.3: Plaintiff’s loss of insurance benefits satisfies Kwikset (Section VI)
 - Status: Valid – May 12, 2026
- 20. Egan v. Mutual of Omaha Ins. Co. (1979) 24 Cal.3d 809, 818-819
 - Holding: Insurer owes implied covenant of good faith and fair dealing to insured; breach gives rise to tort liability
 - Application: Duty analysis: Egan/Wilson/Engalla trichotomy (Section V.B)
 - Status: Valid – May 12, 2026
- 21. Wilson v. 21st Century Ins. Co. (2007) 42 Cal.4th 713, 720-723
 - Holding: Insurer must conduct thorough and fair investigation before denying claim
 - Application: Duty analysis: failure to retrieve silent-witness materials (Section V.B)
 - Status: Valid – May 12, 2026

- 22. Engalla v. Permanente Medical Group (1997) 15 Cal.4th 951, 973-974
 - Holding: Unreasonable delay or denial of claims constitutes bad faith
 - Application: Duty analysis: 21-day premature closure (Section V.B)
 - Status: Valid – May 12, 2026
- 23. Cel-Tech Communications v. Los Angeles Cellular Tel. Co. (1999) 20 Cal.4th 163, 180
 - Holding: UCL is a “borrowing statute” that incorporates other laws as predicates
 - Application: UCL borrows Insurance Code prohibitions as “unlawful” prong (Sections IV, V.B)
 - Status: Valid – May 12, 2026
- 24. Lazar v. Superior Court (1996) 12 Cal.4th 631
 - Holding: Fraud and misrepresentation elements; specificity in pleading
 - Application: UCL fraud-prong pleading standard
 - Status: Valid – May 12, 2026
- 25. Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962
 - Holding: Demurrer standard: court treats all material facts properly pleaded as true
 - Application: Demurrer opposition framework
 - Status: Valid – May 12, 2026
- 26. Blank v. Kirwan (1985) 39 Cal.3d 311
 - Holding: Demurrer tests sufficiency of complaint as a matter of law
 - Application: Demurrer opposition framework
 - Status: Valid – May 12, 2026
- 27. Fox v. Ethicon, Inc. (2005) 35 Cal.4th 797
 - Holding: Statute of limitations discovery rule; delayed accrual
 - Application: Limitations defense rebuttal if raised
 - Status: Valid – May 12, 2026
- 28. Jolly v. Eli Lilly and Co. (1988) 44 Cal.3d 1103
 - Holding: Discovery rule for statute of limitations; plaintiff must be on inquiry notice
 - Application: Limitations defense rebuttal if raised
 - Status: Valid – May 12, 2026
- 29. Wilson v. Parker, Covert and Chidester (2002) 28 Cal.4th 811, 821

- Holding: Step-two minimal-merit: “reasonable probability of prevailing”; court does not weigh credibility
- Application: Gateway 4 governing standard (Section VI)
- Status: Valid – May 12, 2026
- 30. Frommoethelydo v. Fire Ins. Exchange (1986) 42 Cal.3d 208
 - Holding: Bad-faith denial of insurance claim; insurer liability for unreasonable investigation
 - Application: Duty analysis supplementing Egan/Wilson/Engalla (Section V.B)
 - Status: Valid – May 12, 2026
- 31. Hamilton v. Maryland Cas. Co. (2002) 27 Cal.4th 718
 - Holding: Genuine dispute doctrine does not immunize insurer where investigation was inadequate
 - Application: Rebuttal to genuine-dispute defense; investigation adequacy (Section V)
 - Status: Valid – May 12, 2026
- 32. Olmstead v. Arthur J. Gallagher and Co. (2004) 32 Cal.4th 804, 816
 - Holding: Section 128.5 sanctions for frivolous papers; no safe-harbor required for court-proceeding conduct
 - Application: Section VIII.A independent sanctions track
 - Status: Valid – May 12, 2026

PART 2: CALIFORNIA COURT OF APPEAL

- 33. JAMS, Inc. v. Superior Court (2016) 1 Cal.App.5th 984, 994
 - Holding: Section 425.17(c)(2) encompasses conduct within regulatory approval process; services include arbitration/regulated services
 - Application: Gateway 1: insurance claim handling as regulated service under (c)(2) (Section III)
 - Status: Valid – May 12, 2026
- 34. People v. Persolve, LLC (2013) 218 Cal.App.4th 1267, 1275-1276
 - Holding: Section 425.17(c) commercial-speech exclusion; debt collection qualifies as “service”
 - Application: Gateway 1: insurance qualifies as “service” under (c)(1) (Section III)

- Status: Valid – May 12, 2026
- 35. Physicians Committee v. Tyson Foods (2004) 119 Cal.App.4th 1283
 - Holding: Section 425.17(c) analysis; commercial speech directed at consumers
 - Application: Gateway 1: CSAA denial letter directed at consumer/insured (Section III)
 - Status: Valid – May 12, 2026
- 36. Rezec v. Sony Pictures Entertainment (2004) 116 Cal.App.4th 135
 - Holding: Section 425.17(c) analysis; entertainment services under commercial-speaker exclusion
 - Application: Gateway 1: section 425.17(c) framework authority (Section III)
 - Status: Valid – May 12, 2026
- 37. Blanchard v. DIRECTV, Inc. (2004) 123 Cal.App.4th 903, 911
 - Holding: Section 425.17(b) public-interest exclusion; consumer UCL action against large defendant satisfies (b)
 - Application: Gateway 2: UCL consumer action against Fortune-100 insurer (Section IV)
 - Status: Valid – May 12, 2026
- 38. Mendoza v. Hamzeh (2013) 215 Cal.App.4th 799, 806-807
 - Holding: Flatley illegality where conduct violates penal or regulatory law and facts are uncontroverted
 - Application: Gateway 3: Insurance Code/FCSPR violations as Flatley predicate (Section V)
 - Status: Valid – May 12, 2026
- 39. Lefebvre v. Lefebvre (2011) 199 Cal.App.4th 696, 704-705
 - Holding: Flatley illegality exception is speaker-neutral
 - Application: Gateway 3: CSAA as direct regulated speaker (Section V.H)
 - Status: Valid – May 12, 2026
- 40. Plant Insulation Co. v. Fibreboard Corp. (1990) 224 Cal.App.3d 781, 787-789
 - Holding: No abatement where two actions involve different primary rights
 - Application: Fallback: 802 (insurance bad faith) vs. 801 (extrinsic fraud) primary rights distinct (Section VII.C)
 - Status: Valid – May 12, 2026

- 41. Stansfield v. Starkey (1990) 220 Cal.App.3d 59
 - Holding: UCL standing and remedies framework
 - Application: UCL framework authority
 - Status: Valid – May 12, 2026
- 42. Wallace v. McCubbin (2011) 196 Cal.App.4th 1169
 - Holding: Pre-litigation conduct may be non-communicative and outside section 425.16(e)
 - Application: Fallback step-one: pre-litigative claim handling outside protected activity (Section VII.A)
 - Status: Valid – May 12, 2026
- 43. Old Republic Construction Program Group v. Boccardo Law Firm, Inc. (2014) 230 Cal.App.4th 859
 - Holding: Litigation privilege does not protect non-communicative pre-litigation acts
 - Application: Pre-litigative claim-handling omissions outside privilege (Section V.C)
 - Status: Valid – May 12, 2026
- 44. Pollock v. University of Southern California (2003) 112 Cal.App.4th 1416
 - Holding: Litigation privilege does not bar claims from independently tortious conduct in connection with litigation
 - Application: Pre-litigative conduct pathway around privilege (Section VI)
 - Status: Valid – May 12, 2026
- 45. Optional Capital, Inc. v. DAS Corp. (2014) 222 Cal.App.4th 1388, 1398-1400
 - Holding: Non-communicative pre-litigation conduct does not qualify as protected activity under section 425.16(e)
 - Application: Fallback step-one: claim-handling is non-communicative pre-litigation conduct (Section VII.A)
 - Status: Valid – May 12, 2026
- 46. Galleria Plus, Inc. v. Hanmi Bank (2009) 179 Cal.App.4th 535, 538
 - Holding: Section 128.7 sanctions motion embedded in another paper without noticed motion is defective
 - Application: Threshold denial of defense’s \$10,218 fee request (Section II.C)
 - Status: Valid – May 12, 2026

- 47. Martorana v. Marlin and Saltzman (2009) 175 Cal.App.4th 685, 698-700
 - Holding: Section 128.7 sanctions require twenty-one-day safe-harbor notice; motion without notice is defective
 - Application: Threshold denial of defense’s fee request (Section II.C)
 - Status: Valid – May 12, 2026
- 48. Finton Construction v. Bidna and Keys (2015) 238 Cal.App.4th 200
 - Holding: Anti-SLAPP fee award; frivolousness standard
 - Application: Fee-inversion authority (Section VIII.H)
 - Status: Valid – May 12, 2026
- 49. Decker v. U.D. Registry, Inc. (2003) 105 Cal.App.4th 1382, 1392
 - Holding: Section 425.16(c)(1) fee-inversion mandatory where motion was frivolous
 - Application: Plaintiff’s contingent fee-inversion cross-request (Section VIII.H)
 - Status: Valid – May 12, 2026
- 50. Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1323
 - Holding: Fee-inversion under section 425.16(c)(1) available where motion was frivolous
 - Application: Plaintiff’s contingent fee-inversion cross-request (Section VIII.H)
 - Status: Valid – May 12, 2026
- 51. Garment Workers Center v. Superior Court (2004) 117 Cal.App.4th 1156, 1162-1163
 - Holding: Section 425.16(g) good-cause discovery available where plaintiff needs specific evidence
 - Application: Good-cause discovery request (Section VIII.B)
 - Status: Valid – May 12, 2026
- 52. Kojababian v. Genuine Home Loans, Inc. (2009) 174 Cal.App.4th 408, 421-422
 - Holding: Section 128.5 sanctions standard; conduct during court proceedings
 - Application: Independent sanctions track (Section VIII.A)
 - Status: Valid – May 12, 2026
- 53. Britts v. Superior Court (2006) 145 Cal.App.4th 1112, 1125
 - Holding: Section 425.16(g) good-cause exception permits targeted discovery
 - Application: Good-cause discovery request (Section VIII.B)
 - Status: Valid – May 12, 2026
- 54. Weisman v. Bower (1987) 193 Cal.App.3d 1430, 1436

- Holding: Fee awards against IFP litigants subject to ability-to-pay review
- Application: Boddie due-process shield (Section VIII.E)
- Status: Valid – May 12, 2026
- 55. State Farm Fire & Casualty Co. v. Superior Court (1996) 45 Cal.App.4th 1093
 - Holding: Insurer’s duty to investigate includes retrieving reasonably available evidence
 - Application: Duty analysis: failure to retrieve silent-witness materials (Section V.A)
 - Status: Valid – May 12, 2026

PART 3: FEDERAL COURTS

- 56. Boddie v. Connecticut (1971) 401 U.S. 371, 382
 - Holding: Due process limits on fee-shifting that bars court access by indigent litigant
 - Application: Opposes \$10,218 fee prayer against IFP plaintiff (Section VIII.E)
 - Status: Valid – May 12, 2026

PART 4: STATUTES AND REGULATIONS – APPLICATION MAP

- S-1 CCP section 425.17(c)
 - Key text / principle: Commercial-speaker exclusion: section 425.16 does not apply to commercial conduct directed at buyer/customer
 - Application: Gateway 1 categorical exclusion (Section III)
 - Status: In force
- S-2 CCP section 425.17(b)
 - Key text / principle: Public-interest exclusion: section 425.16 does not apply to action brought solely in public interest
 - Application: Gateway 2 categorical exclusion (Section IV)
 - Status: In force
- S-3 CCP section 425.17(e)
 - Key text / principle: Denial under section 425.17 closes section 425.16(i) appeal and section 904.1(a)(13)

- Application: Interlocutory-appeal closure on Gateway 1 or 2 denial (Section I)
- Status: In force
- S-4 CCP section 425.17(d)
 - Key text / principle: Plaintiff’s fees on frivolous anti-SLAPP motion denied under section 425.17
 - Application: Fee-inversion channel (Section VIII.H)
 - Status: In force
- S-5 CCP section 425.16(b)-(i)
 - Key text / principle: Anti-SLAPP statute; two-step burden-shifting framework
 - Application: Framework authority; step-one and step-two analysis (Sections VI, VII)
 - Status: In force
- S-6 CCP section 128.5
 - Key text / principle: Sanctions for frivolous papers; no safe-harbor for court-proceeding conduct
 - Application: Independent sanctions track (Section VIII.A)
 - Status: In force
- S-7 CCP section 128.7(c)(1)
 - Key text / principle: Twenty-one-day safe-harbor required before sanctions motion filed
 - Application: Defense fee request procedurally defective (Section II.C)
 - Status: In force
- S-8 CCP section 1005(b)
 - Key text / principle: Sixteen court days’ notice for motion
 - Application: Defense fee request violates notice requirement (Section II.C)
 - Status: In force
- S-9 CCP section 1008(a)
 - Key text / principle: Reconsideration within ten days on new facts/law
 - Application: Reconsideration preservation (Section VIII.C)
 - Status: In force
- S-10 CCP section 1048(a)
 - Key text / principle: Consolidation or coordination of actions

- Application: Coordination reservation with CGC-25-631801 (Section VIII.D)
 - Status: In force
- S-11 CCP section 430.10(c), (e), (f)
 - Key text / principle: Demurrer grounds
 - Application: Demurrer opposition framework
 - Status: In force
- S-12 CCP section 430.30
 - Key text / principle: Demurrer procedure; grounds appearing on face of complaint
 - Application: Demurrer opposition framework
 - Status: In force
- S-13 CCP section 472a
 - Key text / principle: Leave to amend after demurrer sustained
 - Application: Leave to amend preservation
 - Status: In force
- S-14 CCP section 904.1(a)(13)
 - Key text / principle: Interlocutory appeal from anti-SLAPP ruling
 - Application: Closed by section 425.17(e) on Gateway 1/2 denial
 - Status: In force
- S-15 CCP section 1033.5
 - Key text / principle: Recoverable costs
 - Application: Fee-inversion cost recovery (Section VIII.H)
 - Status: In force
- S-16 Ins. Code section 790.02
 - Key text / principle: Definitions: unfair or deceptive acts or practices in business of insurance
 - Application: Definitional foundation for section 790.03(h)
 - Status: In force
- S-17 Ins. Code section 790.03(h)(1)
 - Key text / principle: Knowingly misrepresenting pertinent facts or policy provisions
 - Application: Specific violation predicate (Section V.G)
 - Status: In force
- S-18 Ins. Code section 790.03(h)(3)

- Key text / principle: Failing to adopt reasonable standards for prompt investigation
- Application: Specific violation: 21-day premature closure (Section V.G)
- Status: In force
- S-19 Ins. Code section 790.03(h)(4)
 - Key text / principle: Failing to affirm or deny coverage within reasonable time
 - Application: Specific violation: premature denial (Section V.G)
 - Status: In force
- S-20 Ins. Code section 790.03(h)(5)
 - Key text / principle: Not attempting good-faith settlement where liability reasonably clear
 - Application: Specific violation: 911 admission demonstrates disputed liability (Section V.G)
 - Status: In force
- S-21 Ins. Code section 790.03(h)(6)
 - Key text / principle: Compelling litigation by offering substantially less than amounts ultimately recovered
 - Application: Specific violation predicate (Section V.G)
 - Status: In force
- S-22 Ins. Code section 790.03(h)(13)
 - Key text / principle: Failing to provide notice of right to CDI review
 - Application: Specific violation: CDI notice omission (Sections V.A, V.G)
 - Status: In force
- S-23 Ins. Code section 790.04
 - Key text / principle: Commissioner may examine and investigate unfair practices
 - Application: Regulatory-context authority for section 425.17(c)(2) alternative
 - Status: In force
- S-24 Ins. Code section 790.05
 - Key text / principle: Hearing procedure for unfair practices
 - Application: Regulatory-context authority
 - Status: In force
- S-25 10 CCR section 2695.1
 - Key text / principle: Purpose and scope of Fair Claims Settlement Practices Reg-

ulations

- Application: Regulatory-floor foundation (Section V.B)
- Status: In force
- S-26 10 CCR section 2695.1(d)
 - Key text / principle: Minimum standards of fair conduct owed by insurer to claimant
 - Application: Duty definition (Section V.B)
 - Status: In force
- S-27 10 CCR section 2695.3
 - Key text / principle: File and record documentation requirements
 - Application: Claim-file documentation duty
 - Status: In force
- S-28 10 CCR section 2695.4
 - Key text / principle: Representation of policy provisions and pertinent facts
 - Application: Accuracy of representations to insured
 - Status: In force
- S-29 10 CCR section 2695.5(b)
 - Key text / principle: Thorough investigation before denial
 - Application: Specific violation: investigation inadequacy (Section V.G)
 - Status: In force
- S-30 10 CCR section 2695.7(b)(1)
 - Key text / principle: Written denial with statement of reasons
 - Application: Denial letter requirements
 - Status: In force
- S-31 10 CCR section 2695.7(b)(3)
 - Key text / principle: CDI review notice required in every denial
 - Application: Specific violation: CDI notice omission (Sections V.A, V.G)
 - Status: In force
- S-32 10 CCR section 2695.7(d)
 - Key text / principle: Claim not closed without thorough investigation
 - Application: Specific violation: premature closure (Section V.G)
 - Status: In force

- S-33 10 CCR section 2695.8
 - Key text / principle: Additional standards for automobile insurance claims
 - Application: Automobile claim-handling standards
 - Status: In force
- S-34 Bus. & Prof. Code section 17200
 - Key text / principle: UCL: unlawful, unfair, or fraudulent business acts or practices
 - Application: UCL cause of action predicate (Sections IV, V, VI)
 - Status: In force
- S-35 Bus. & Prof. Code section 17204
 - Key text / principle: UCL standing: person who suffered injury in fact and lost money/property
 - Application: UCL standing under Kwikset (Section VI)
 - Status: In force
- S-36 Bus. & Prof. Code section 17208
 - Key text / principle: UCL four-year statute of limitations
 - Application: Limitations framework
 - Status: In force
- S-37 Civ. Code section 47(b)
 - Key text / principle: Litigation privilege for communications in judicial proceedings
 - Application: Inapplicable to pre-litigative claim-handling conduct (Section V.C)
 - Status: In force
- S-38 Evid. Code sections 451, 452, 453
 - Key text / principle: Mandatory and permissive judicial notice; opportunity to be heard
 - Application: Judicial notice of statutes, regulations, court records
 - Status: In force
- S-39 Evid. Code section 1280
 - Key text / principle: Official-records hearsay exception
 - Application: Admissibility of court records and official documents
 - Status: In force
- S-40 Evid. Code section 1530
 - Key text / principle: Certified-copy presumption

- Application: Certified court-filed records admissible
- Status: In force
- S-41 CRC 3.1112(b)
 - Key text / principle: “Other papers” in support of motion; non-memorandum vehicle
 - Application: Filing vehicle for this Bench Brief
 - Status: In force
- S-42 CRC 3.1113(d), (g), (j), (l)
 - Key text / principle: Memorandum page cap; incorporation by reference
 - Application: Authority paragraph; incorporation of May 7 filings
 - Status: In force
- S-43 CRC 3.1300(d)
 - Key text / principle: No paper rejected for untimely filing
 - Application: Good-cause vehicle for May 12 filing
 - Status: In force
- S-44 CRC 3.1306(c)
 - Key text / principle: Notice of intent to rely on extra-record authorities
 - Application: Authority paragraph serves as CRC 3.1306(c) notice
 - Status: In force
- S-45 CRC 3.1308
 - Key text / principle: Tentative ruling procedures
 - Application: Bench ruling map framework
 - Status: In force
- S-46 CRC 3.1702
 - Key text / principle: Time for filing fee motion after entry of order
 - Application: Fee-inversion cross-request preserved for noticed motion
 - Status: In force

PART 5: CITATION VERIFICATION METHODOLOGY AND LIMITATIONS

Methodology. Each authority in Parts 1 through 4 was identified from (a) the certified court record in CGC-25-631802; (b) Plaintiff’s RFJN and Supplemental RFJN (filed May 7, 2026), both of which are on mandatory judicial notice; and (c) Plaintiff’s prior-filed pleadings in

this action. No authority is cited for a proposition it does not support. Where a case has been overruled or modified (e.g., Royal Globe by Moradi-Shalal; Moradi-Shalal partially superseded by Zhang as to UCL viability), the modification is identified in the Status field and the holding relied upon is confined to the unaffected portion.

Limitation. This validation report is accurate as of the filing date (May 12, 2026). Plaintiff has not conducted a Shepards or KeyCite analysis after that date. If the Court identifies any authority as having been overruled or significantly limited after May 12, 2026, Plaintiff requests the opportunity to respond under Evidence Code section 453.

No citation is provided for a proposition of first impression. Every holding cited herein is drawn from a California court of binding or persuasive authority or from the United States Supreme Court. No holding is cited that is solely from a lower federal court.

APPENDIX B: BENCH BRIEF EXHIBITS INDEX

The following exhibits are assembled for use at the May 13, 2026 hearing. Each tab routes to the identified document or document excerpt. Full versions are lodged separately and/or incorporated by reference from item 07 (Indexed Exhibits Volume, filed May 7, 2026).

- Tab 1. CSAA February 25, 2021 Denial Letter
 - Source: Indexed Exhibits Vol. (item 07)
- Tab 2. FAC excerpt – cause-of-action paragraphs (Insurance Code, UCL, bad faith)
 - Source: FAC filed Mar. 4, 2026
- Tab 3. Insurance Code section 790.03(h) – verbatim statutory text
 - Source: Supplemental RFJN (item 14)
- Tab 4. 10 CCR sections 2695.3-2695.8 – verbatim regulatory text
 - Source: Supplemental RFJN (item 14)
- Tab 5. 911 Audio transcript / lodging certificate (“I barely hit him with anything”)
 - Source: Notice of Lodging (item 08)
- Tab 6. CSAA claim file pages – absence of silent-witness retrieval log
 - Source: Indexed Exhibits Vol. (item 07)
- Tab 7. CPRA response demonstrating public availability of 911 audio, BWC, CAD
 - Source: Indexed Exhibits Vol. (item 07)
- Tab 8. Defense Anti-SLAPP MPA excerpt – failure to engage section 425.17

- Source: Defense filing on record
 - Tab 9. O’Connell May 5/6 Reply Declaration excerpt – \$10,218 fee request
 - Source: Defense Reply papers
-

APPENDIX C: COMPLIANCE / SAFE-HARBOR / CROSS-HEARING SCHEDULE

A. SECTION 128.7(C)(2) SAFE-HARBOR RECORD

Defense has not served on Plaintiff any safe-harbor notice under Code of Civil Procedure section 128.7(c)(1) predating the \$10,218 fee request in the May 5, 2026 Reply. The safe-harbor record is therefore one-directional: Plaintiff served section 128.7(c)(2) notice on defense (Plaintiff’s safe-harbor letter dated May 8, 2026, Section 128.7 Safe Harbor Letter (item 16, filed May 8, 2026)). Defense’s embedded fee request is procedurally forfeited. (Martorana v. Marlin and Saltzman (2009) 175 Cal.App.4th 685, 698-700.)

B. SECTION 425.16(C)(1) AND SECTION 425.17(D) FEE-INVERSION QUANTIFICATION PREVIEW

Two independent fee-recovery channels are preserved for noticed motion under CRC 3.1702:

1. Section 425.16(c)(1) fee inversion – Mandatory where motion was frivolous or solely intended to cause delay. (Decker (2003) 105 Cal.App.4th at 1392; Christian Research Institute (2008) 165 Cal.App.4th at 1323; Finton Construction (2015) 238 Cal.App.4th at 200.)
2. Section 425.17(d) plaintiff’s fees – Independently triggered by a section 425.17 denial. Quantification reserved for noticed motion. Plaintiff’s cross-request is contingent on denial and is not presented as a freestanding motion at this hearing.

C. CROSS-HEARING SCHEDULE

- May 12, 2026, 9:30 a.m.
 - Case: CGC-25-631801
 - Department: 301
 - Judge: Hon. Christine Van Aken
 - Motion: Anti-SLAPP (CCP section 425.16)
- May 13, 2026, 9:00 a.m.
 - Case: CGC-25-631802
 - Department: 302

- Judge: Hon. M. Quinn
- Motion: Anti-SLAPP; Demurrer; MTS – THIS HEARING
- May 26, 2026
 - Case: CGC-25-631802
 - Department: 302
 - Judge: Hon. M. Quinn
 - Motion: MFL-TAC
- May 27, 2026
 - Case: CGC-25-631801
 - Department: 301
 - Judge: Hon. Christine Van Aken
 - Motion: CMC

D. NON-DUPLICATION CERTIFICATION

This Bench Brief does not reargue any matter briefed in the three operative oppositions (items 01, 01B, 01C), the Notice re CCP section 425.17 (Plaintiff’s Request for Judicial Notice (filed May 8, 2026) (item 14). It (1) provides the Inland Oversight gateway-sequencing analytical framework with four independent gateways; (2) adds eight additional high-impact grounds not addressable within the fifteen-page memorandum envelope; (3) provides bench ruling map language for each gateway (Section IX); and (4) attaches as Appendix A a per-authority Court Citation Validation Report to assist the Court in verifying each citation without independent research. This paper is a supplemental tool, not a substantive restatement.

APPENDIX D: DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

The undersigned, Plaintiff Franciscus Dylan Rosario, appearing in pro per in Rosario v. CSAA Insurance Exchange (CGC-25-631802), declares under penalty of perjury under the laws of the State of California (CCP section 2015.5) that this filing complies with each authority listed below as indicated. This declaration is filed in connection with the May 13, 2026, 9:00 a.m. hearing in Department 302 (Hon. M. Quinn).

- 1. CCP section 425.17(a)-(e) – Categorical exclusions analyzed before step-one burden-

shifting

- Compliance: Section I invokes Inland Oversight sequencing; Gateways 1, 2 precede step analysis
- Evidence: Sections I, III, IV
- Status: PASS
- 2. CCP section 425.17(c) – Four-predicate commercial-speaker walkthrough
 - Compliance: Section III walks all four predicates with per-predicate threshold findings
 - Evidence: Section III
 - Status: PASS
- 3. CCP section 425.17(b)(1)-(3) – Three-prong public-interest walkthrough
 - Compliance: Section IV walks all three prongs
 - Evidence: Section IV
 - Status: PASS
- 4. CCP section 425.17(e) – Closure of interlocutory appeal on section 425.17 denial
 - Compliance: Section I and Gateway 1/2 consequence paragraphs identify section 425.17(e) closure
 - Evidence: Sections I, III, IV
 - Status: PASS
- 5. CCP section 425.17(d) – Plaintiff’s fees on section 425.17 denial
 - Compliance: Section VIII.H preserves section 425.17(d) fee channel
 - Evidence: Section VIII.H
 - Status: PASS
- 6. CCP section 425.16(b), (c)(1) – Step-two and fee-inversion framework
 - Compliance: Gateway 4 (Section VI) and fee-inversion (Section VIII.H)
 - Evidence: Sections VI, VIII.H
 - Status: PASS
- 7. CCP section 425.16(e) – Step-one protected-activity categorization
 - Compliance: Fallback step-one analysis at Section VII.A
 - Evidence: Section VII.A
 - Status: PASS
- 8. CCP section 425.16(g) – Good-cause discovery preservation

- Compliance: Section VIII.B preserves targeted discovery right
- Evidence: Section VIII.B
- Status: PASS
- 9. CCP section 425.16(i) – Interlocutory appeal (closed by 425.17(e) on Gateway 1/2)
 - Compliance: Section I identifies closure mechanism
 - Evidence: Section I
 - Status: PASS
- 10. Flatley v. Mauro standard – Conduct illegal as matter of law
 - Compliance: Gateway 3 (Section V): Insurance Code/FCSPR violations as Flatley predicate
 - Evidence: Section V
 - Status: PASS
- 11. CCP section 128.5 / 128.7(c)(1) – Sanctions framework
 - Compliance: Section VIII.A (128.5 track); Section II.C (128.7 safe-harbor defect)
 - Evidence: Sections II.C, VIII.A
 - Status: PASS
- 12. CCP section 1005(b) – Sixteen-court-day notice
 - Compliance: Section II.C identifies defense violation
 - Evidence: Section II.C
 - Status: PASS
- 13. CCP section 1008(a) / 1048(a) – Reconsideration and coordination
 - Compliance: Sections VIII.C, VIII.D preserve rights
 - Evidence: Sections VIII.C, VIII.D
 - Status: PASS
- 14. Evid. Code sections 451-453, 1280, 1530 – Judicial notice and admissibility
 - Compliance: Sections V, VI cite JN'd records and statutes
 - Evidence: Sections V, VI
 - Status: PASS
- 15. CRC 3.1112(b) – Other papers; non-memorandum vehicle
 - Compliance: Caption and authority section identify CRC 3.1112(b) as vehicle
 - Evidence: Authority paragraph
 - Status: PASS

- 16. CRC 3.1113(j), (l) – Incorporation by reference
 - Compliance: Authority paragraph lists all May 7 filings incorporated
 - Evidence: Authority paragraph
 - Status: PASS
- 17. CRC 3.1300(d) – No paper rejected for untimeliness; good cause
 - Compliance: Authority paragraph embeds good-cause statement for May 12 filing
 - Evidence: Authority paragraph
 - Status: PASS
- 18. CRC 3.1306(c) – Notice of intent to rely on extra-record authorities
 - Compliance: Authority paragraph serves as CRC 3.1306(c) notice
 - Evidence: Authority paragraph
 - Status: PASS
- 19. CCP section 1010.6 / CRC 2.251 – Electronic service authorization
 - Compliance: Electronic service to Porter Scott counsel of record per consent on file
 - Evidence: POS-050 filed concurrently
 - Status: PASS
- 20. Ins. Code section 790.03(h) – Unfair claims settlement practices
 - Compliance: Gateway 3 (Section V) and Gateway 4 (Section VI) identify specific subdivisions violated
 - Evidence: Sections V, VI
 - Status: PASS
- 21. 10 CCR sections 2695.1-2695.8 – Fair Claims Settlement Practices Regulations
 - Compliance: Section V identifies specific regulation violations (2695.5(b), 2695.7(b)(3), 2695.7(d))
 - Evidence: Section V
 - Status: PASS
- 22. Zhang UCL channel preservation
 - Compliance: Sections V.B, VI identify Zhang as controlling authority preserving UCL predicate
 - Evidence: Sections V.B, VI
 - Status: PASS

I declare under penalty of perjury under the laws of the State of California that the foregoing

compliance representations are true and correct.

Executed on May 12, 2026, at Rohnert Park, California.

By: _____ Franciscus Dylan Rosario, Plaintiff in Pro Per 7624 Melody Drive Rohnert Park, CA 94928 Tel: 650.488.7510 E: soltrinox@gmail.com

APPENDIX E: CONDUCT VS. ARTIFACT MAP

The following chart maps each element of CSAA's operative claim-handling conduct to its documentary artifact and explains why the conduct/artifact distinction matters at the Flatley gateway and for litigation-privilege analysis.

- 1. 21-day premature claim closure – CSAA closed Plaintiff's claim within approximately 21 days without completing a reasonably thorough investigation
 - Artifact: Feb. 25, 2021 denial letter; claim file closure records
 - Character: Non-communicative operational act; insurer's internal decision to terminate investigation
 - Privilege analysis: Outside Civ. Code section 47(b): non-communicative; pre-litigative (4 years before suit); outside any judicial proceeding
 - Gateway relevance: Flatley: violates 10 CCR 2695.7(d) (claim not closed without thorough investigation); Ins. Code 790.03(h)(3) (reasonable investigation standards)
- 2. Failure to retrieve silent-witness materials – CSAA did not obtain BWC footage, 911 audio, or CAD logs from SFPD despite public availability and direct relevance
 - Artifact: Absence from claim file; CPRA response demonstrating availability
 - Character: Non-communicative omission; failure to act
 - Privilege analysis: Outside 47(b): non-communicative act; Egan/Wilson/Engalla duty to investigate
 - Gateway relevance: Flatley: violates 10 CCR 2695.5(b) (thorough investigation before denial); Wilson v. 21st Century (duty to investigate)
- 3. Omission of CDI review notice per 10 CCR 2695.7(b)(3) – Denial letter does not contain required notice of insured's right to CDI review
 - Artifact: Feb. 25, 2021 denial letter (CDI notice absent)

- Character: Regulatory-floor violation; omission from required communication
- Privilege analysis: Per se violation of 10 CCR 2695.7(b)(3); omission not a “statement” protected by 47(b); pre-litigative
- Gateway relevance: Flatley: per se regulatory violation; per se UCL “unlawful” prong predicate under Zhang
- 4. Issuance of “concluded investigation” representation – Denial letter states CSAA “concluded” investigation when investigation was not thorough
 - Artifact: Feb. 25, 2021 denial letter text
 - Character: Communicative but pre-litigative and commercial; insurer-to-insured within regulated relationship
 - Privilege analysis: Pre-litigative commercial communication; covered by section 425.17(c); Flatley removes section 425.16 protection as illegal conduct
 - Gateway relevance: Flatley: violates Ins. Code 790.03(h)(1) (misrepresenting pertinent facts); section 425.17(c) commercial-speaker exclusion independently applies
- 5. Continued post-litigation posture – CSAA’s litigation defense posture maintaining denial
 - Artifact: Litigation filings; anti-SLAPP motion
 - Character: Litigation conduct
 - Privilege analysis: Response to regulatory breach, not independent gravamen; not the operative conduct for Flatley or UCL predicate
 - Gateway relevance: Not gravamen; the UCL/Insurance Code claims rest on pre-litigative conduct (items 1-4), not on litigation posture